

Michigan Natural Resources and Environmental Protection Act

In 1994, most of Michigan's environmental acts were consolidated into the Natural Resources and Environmental Protection Act. The act is organized into parts. Part 201 states that the act's purpose is to "provide appropriate response activity to eliminate unacceptable risks to public health, safety, or welfare, or to the environment from environmental contamination at facilities within the state."

Let's say your client, Brad, operates a facility that's known to contain hazardous substances. The act requires Brad to take steps to minimize contamination. And before Brad could sell that property to anyone else, he'd have to provide the buyer with a written notice regarding the nature of the hazardous substance.

Wetlands, which are designated as such by Michigan Department of Environmental Quality, are also protected by the Natural Resources and Environmental Protection Act.